2-2 Intellectual Property Rights

Point!

1 Intellectual Property Rights

([1]**Intellectual Property Rights**) : Rights that protect creations and ideas generated by human intellectual activities. These rights are mainly divided into Industrial Property Rights and Copyrights.

2 Industrial Property Rights

(1) ([2]**Industrial Property Rights**) : Rights primarily related to the manufacturing of industrial or commercial products. This follows the principle in which rights come into effect once an application is filed with and registered by the ([3]**Egypt Patent Office**). This is known as the ([4]**Formality**) Principle.

(2) Types of Industrial Property Rights

Name	Subject of Rights	Protection Period
([5]**Patent Rights**)	Rights to advanced technological ideas and inventions.	20 years from the application
([6]**Utility Model Rights**)	Rights to the shape or structure of a product.	7 years from the application
([7]**Design Rights**)	Rights to a design, such as the shape and patterns of a product.	10 years from the application (to be renewed once every 5 years)
([8]**Trademark Rights**)	Rights related to items such as product names, logos, text, and sound.	10 years from the registration (Updated)

3 Copyrights

(1) ([9]**Copyrights**) : Rights related to creative activities in the arts and cover works such as novels, movies, paintings, photographs, music, and computer programs. It follows the ([10]**Non-Formality**) Principle, under which rights are established at the moment a copyrighted work is created, regardless of whether the creator is an amateur or a minor.

(2) ([11]**Copyright Act**) : A law that protects the rights of creators.

<Rights of Creators>

[1] ([12]**Moral rights of creator**) : Rights that protect the personal interests of the creator.

[2] ([13]**Copyrights (property rights)**) : Rights that protect the economic interests of the creator.

(3) ([14]**Neighboring Rights**) : Rights that arise for individuals or entities who communicate or transmit copyrighted works. Granted to performers such as singers, directors, and actors, as well as record companies and broadcasting organizations.

(4) Copyright protection period : The lifetime of the creator plus ([15]**50**) years after their death.

(5) Copyright infringement : As a general rule, when reproducing someone else's copyrighted work or using it on a website, it is necessary to obtain ([16]**permission**) from the creator. Using a work without permission would constitute a ([17]**copyright infringement**).

Warm Up

Answer the following questions.

(1) Insert the appropriate terms for [1] to [6] to complete the following sentence.

> The rights granted to a creator when they produce something through intellectual activity are called ([1]). ([1]) are primarily composed of ([2]), which contribute to the development of industry, and ([3]), which contribute to the development of culture. ([2]) are established under the ([5]) in which rights are granted upon approval after filing a notification with ([4]). On the other hand, ([3]) do not require reporting or registration, and the rights are granted at the time of creation. Furthermore, the protection period for ([3]) is ([6]) years after the death of the creator.

(2) For the following statements concerning the laws and rights of information society, mark "○" if the statement is appropriate, and "×" if it is incorrect.

[1] Posting Taha Hussein's novel "The Days" on your website without permission does not constitute copyright infringement.

[2] Downloading music or videos that are for sale while knowing that they have been illegally uploaded constitutes copyright infringement.

[3] Posting the audio data of Beethoven's Symphony No. 5 "Fate" played exceptionally well by someone else on social media does not constitute copyright infringement.

[4] Trademark rights conclude 10 years after registration with the Patent Office, but the rights can be maintained through renewal procedures.

Explanation

(1) [1] Intellectual Property Rights [2] Industrial Property Rights [3] copyrights
[4] Egypt Patent Office [5] Formality Principle [6] 50

(2) [1] Novelists like Taha Hussein can be used copyright-free as over 50 years have passed since their death. Therefore, ○

[2] Downloading music or movies while knowing they have been illegally uploaded constitutes copyright infringement. Therefore, ○

[3] Musical compositions by Beethoven, Mozart, and similar composers are no longer under copyright protection, as more than 50 years have passed since their death. However, performers and record companies have neighboring rights, so it is necessary to verify the usage permissions. Therefore, ×

[4] Trademark rights conclude 10 years after registration with the Patent Office, but the rights can be maintained for an additional 10 years through renewal procedures. Therefore, ○

Try

1 Answer the following questions.

(1) From the following terms **A** to **H**, choose the terms that best fit into the blanks [1] to [4].

> Rights related to creations resulting from human intellectual activity are collectively referred to as ([1]). ([1]) can be largely divided into Industrial Property Rights and ([2]).
> A copyrighted work is something created through academic or artistic creative activity. Copyrighted Works include novels, scripts, ([3]), musical compositions, works of art, buildings, photographs, computer programs, etc. Illustrations or web pages that you create yourself are also considered copyrighted works. In principle, to use someone else's copyrighted work, you are required to obtain permission from the creator. Using a work without permission will be considered ([4]) and may be subject to penalties.

A	Copyrights	**B**	Intellectual Property Rights	**C**	Patent Rights	**D**	Utility Model Rights
E	Movies	**F**	Ideas	**G**	Copyright Infringement	**H**	Patent Infringement

(2) From the following terms **A** to **H**, choose the terms that best fit into the blanks [1] to [3].

> Industrial property rights include rights such as ([1]) rights, which protect designs like those of automobiles, and ([2]) rights, which protect inventions such as ideas for shapes that improve water drainage in washing machines. To receive protection as an industrial property right, it is ([3]) to file an application.

A	Utility model	**B**	Trademark	**C**	Creative works	**D**	Design
E	Patent	**F**	Unnecessary	**G**	Necessary		
H	Necessary when obtaining rights for commercial purposes						

2 Read the following passage and answer the questions.

> As a general rule, it is necessary to obtain permission from the creator when reproducing someone else's copyrighted work or publishing it on a website. Using the work without permission constitutes (A)copyright infringement. However, under certain conditions, it is possible to freely use a copyrighted work without obtaining permission from the creator. For example, works that have passed more than (B) years after the death of the creator fall under this category.

(1) For the underlined section A, choose all statements that apply as copyright infringement, and answer using the letters.

A I recorded a movie broadcast on television and distributed it.
B I posted Taha Hussein's novel "The Days" on my website without permission.
C I copied an illustration that was distributed for free and sold the copies at a low price.
D Even though I knew that a video was illegally uploaded, I downloaded it solely for personal use.

(2) Answer by writing the appropriate number in blank B.

Exercise

1 Answer the following questions.

(1) Among intellectual property rights, what is the term for the rights that pertain to the manufacturing of industrial and manufactured products?

(2) Out of the following statements **A** to **D**, choose all statements that are incorrect in relation to copyrights.

A Copyrights are granted through recognition upon application to the Patent Office.

B Copyrights are related to the quality of a work.

C Copyrights are maintained for 50 years after the death of the creator.

D Copyrights arise even if the creator is a minor.

(3) What is the term for the rights that protect the marks used to distinguish goods and services?

(4) What is the term for the rights that protect inventions of things or methods?

(5) For the following statements concerning the laws and rights of information society, mark "○" if the statement is appropriate, and "×" if it is incorrect.

[1] A design right is recognized for ideas related to the technical aspects of a product's shape or structure that can be immediately implemented.

[2] Copyrights tend to be recognized less frequently for creations by amateurs or children, as copyrights are often related to the quality of the work.

[3] Recording a movie broadcast on television and then distributing that movie constitutes a copyright infringement.

[4] The protection period for a patent right is 20 years from the date of application.

[5] There is no problem with posting the full text of Sadeq Elrafaey's "The Pen Inspiration" on one's blog without obtaining permission if you are very fond of its prose.

2 Read the following passage and answer the questions.

> There are four types of Industrial Property Rights: Patent Rights, Utility Model Rights, Design Rights, and (A) Rights. Among these, Utility Model Rights are rights pertaining to ([1]). Additionally, (A) rights refer to the rights concerning product names or logos, and the protection period is (B) years from the date of registration.

(1) Answer by filling in blank A with the appropriate term.

(2) Answer by filling in blank B with the appropriate number.

(3) Choose the most appropriate phrase to fill in blank [1] from the options **A** to **D** below, and answer using the letters.

A Reproduction or sale of products

B Conveyors of products

C Product design

D Ideas for the structure and shape of a product